

But upon solemn argument at the Bench it was unanimously resolved, that judgment should be given against the defendants.

And as to the first point, it was divided into five parts. 1. What jurisdiction the Court of Marshalsea had at the common law before the Act of Articuli super Chartas, anno 28 E. 1. and therein the extent of their jurisdiction was considered. Sc. 1. In what actions the Court had jurisdiction. 2. To what place their jurisdiction was circumscribed, and to what persons their jurisdiction extended (B).

2. The reasons why the common law gave them, as Judges of the Court of Marshalsea, such particular and limited jurisdiction.

3. Consideration was had of the Act of Articuli super Chartas and therein three points were discussed. 1. Why this Act was called Articuli super Chartas. 2. What manner of Act it was, whether introductory of a new law, or declaratory of the old.—3. The several parts of the Act were considered.

4. The authorities of law in all successions of ages since the said Act.

5. The nature of this action upon the case *sur assumpsit*.

As to the first, it is to be known, that the Steward and Marshal of the King's Household had, before the said Act, two distinct authorities; one, they had such general authority in effect as justices in eyre had, for they were the vicegerents in part of the Chief Justice of England within the verge: also the Steward and Marshal had another authority, *sc.* to hold the Court of Marshalsea, the title of which was, *Plac' coronæ aulæ hospitii dom' Regis coram Seneschallo & Marischallo*. By force of their first authority, they might hold all manner of pleas of the Crown, and of Common Pleas as well real and mixed, as personal, and that appears by divers ancient precepts of summons which they used to direct to sheriffs, &c. to cause to come before them all pleas, &c. the form of which was such; *Robertus filius Johannis miles, Seneschallus hospitii domini Regis vic' S. salutem: mandamus quod ven' fac' coram nobis tali die ubicunque dom' Rex tunc fuerit in ballivâ tuâ omnes assisas novæ [71 b] disseisinæ mortis antecessoris, ultimæ presentis, magnas assisas, & omnes juratas, inquisitiones & attinctas & omnia placit' de dote unde mulieres nihil habent & quæ summ' sunt coram Justic' Regis ad primas assisas cum in partes illas venerint, immo & omnes assisas illas et placita illa, juratas, inquisitiones & attinctas illas quæ coram Justic' Regis ad assisas capiendas in ballivâ vestrâ assignatis fuerint attaminatæ & non finitæ. Et partibus diem illum præfixis quod tunc sit ibi assisas illas et placita illa, juratas et inquisitiones et attinctas illas in eodem statu quo remanserunt coram præfat' Justic' prosecut' si voluerint. Venire etiam fac' coram nob' dictis die & loco, omnes prisiones & manucaptos de ballivâ vestrâ, et omnia attachiamenta quæ pertinent ad gaolam deliberandam. Fac' etiam proclamari et sciri per totam ballivam vestram quod omnes liberi et quatuor homines et prepositus de villatis quar' interfuerint quod tunc sint ad deliberationem prædictam. Et habeant' ibi recognitores, nomina pleg', summ' et hoc breve.*

And that they had such general authority, appears in Fleta, who wrote before the said Act of 28 E. 1. lib. 2. cap. 2. *Habet et Rex Curiam suam coram Seneschallo suo in aulâ suâ, qui jam tenet locum capitalis Justiciarii Regis, de quo sit mentio in communi brevi de hom' repl', qui proprias causas Regis terminari consuevit, et falsum judicium ad veritatem revocare et conquerentibus absque brevi justitiam exhibere; cujus vices gerit in parte idem Seneschallus hospitii Regis, cujus interest de omnibus actionibus contra pacem infra metas hospitii, &c. recenter illatis etiam sine brevi, &c. auditis queremoniis injuriarum in aulâ Regis audire et terminare, assumpt' sibi camerar', hostiar', vel Marischallo aulæ, militibus, vel aliquibus eorum, si omnes interesse non possunt. Et cap. 3. Habet Seneschallus ex virtute officii sui prædictam potestatem procedendi ad utlagationes et bella injungendi, et omnia et singula faciend' quæ ad justiciarios itinerantes, prout superius dictum est, pertinent faciend', hoc tantum excepto quod de libero tenemento intrmittere non debet sine brevi.* And there it appears, that the Steward, &c. held this Court in aulâ Regis; and what authority justices in eyre had to hold pleas of the Crown, and all common pleas, real, mixed, and personal, you may see in the Mirror of Justices, cap. 2. sect. 3. where it is said, the Kings do right to all by their Justices Commissaries errants assigned to all pleas.—*Vide* the statute of Westm. 2. cap. 11. Bracton, lib. 3. cap. 7. fol. 105. &c. and 115. b. Britton, cap. 1. 6. E. 2. Assise Bro. 496. 4. E. 3. 41, 42 6 E. 3. 55.

(B) *Vid.* Com. Dig. Courts, F. Bac. Ab. Marshalsea and Palace Court. Vin. Ab. Marshal and Marshalsea, A. 2. 3 Black. Comm. 75.